



File No.: EXP202307874

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access against CAIXABANK, S.A. (hereinafter, the respondent) without their request receiving the legally established response. The claimant states that they requested the respondent access to their personal data subject to processing, as well as "the reports, rigorous individual assessments on risk and solvency" that served to reject their status as a guarantor in a mortgage loan requested by their daughter, as well as the identity of the individuals who prepared them, receiving a response from the Customer Service, dated March 22 and 27, 2023, which did not refer to the requested right.

On the other hand, they state that regarding the access request addressed to the Data Protection Officer, dated March 20, 2023, they have not received a response within the legally established timeframe. Along with the complaint, they provide a copy of the responses from Customer Service in which, regarding the rejection of their status as a guarantor for the loan requested by their daughter, it is indicated as follows: "they proposed the possibility of incorporating me as a party in the operation. The option of doing so as a guarantor was discarded, as it did not resolve the debt-to-income ratio of the request; therefore, it was proposed that I be the holder of the mortgage." Furthermore, they provide a copy of the access request, dated March 20, 2023, addressed to the Data Protection Officer of the respondent and proof of sending, by certified letter, on March 20, 2023.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the claims of the claimant to be satisfied. Consequently, on July 26, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present the allegations they deemed appropriate within ten working days.

The respondent has requested a copy of the file after submitting allegations stating that they have addressed the right. They provide letters addressed to the claimant dated prior to the admission of this complaint for processing.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may submit the allegations they consider appropriate.

The claimant states that the respondent has repeatedly ignored their requests regarding the reports and assessments concerning their financial solvency and risks related to them.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679,

this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the context of their duties.

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3/6

the performance of their functions. In the event that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the party being claimed against for analysis, requiring them to respond to this Agency within one month and to provide proof of having given the claimant the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on July 26, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. Once this period has elapsed, the interested party may consider their claim to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

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In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller. The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not negatively affect the rights and freedoms of others.

V

Conclusion

During the processing of this procedure, the entity being complained about has responded to this Agency, but does not prove to have addressed the request made by the complainant, sending the required response to their request.

On November 28, 2023, after the admission of this complaint, which considered the right not to have been addressed with what was presented to date, this Agency sends all the documentation of the file. And, as of the resolution date of this complaint, the entity being complained about has not proven to have addressed the right.

Thus, it cannot be accepted that the response to be given can be manifested merely as an administrative procedure, such as the submission of allegations regarding this procedure, which was initiated precisely for not properly addressing the request in question.

Therefore, the request made obliges the data controller to provide an express response in any case, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be directed to the complainant informing them about the decision taken regarding the request for the exercise of rights is not attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge CAIXABANK, S.A. with NIF A08663619, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be addressed, in accordance with the provisions of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to CAIXABANK, S.A.

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6/6

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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